



lauren moore <[REDACTED]>

Ofqual - response to letter before claim [REDACTED]

4 messages

Kieran Laird <kieran.laird@gowlingwlg.com>

Fri, Sep 19, 2025 at 6:08 PM

To: "[REDACTED]" <[REDACTED]>

Cc: Lara Epsley <lara.epsley@gowlingwlg.com>

Dear Ms Moore

We are instructed by Ofqual with respect to your letter before claim dated 12 September 2025.

Please find attached Ofqual's response.

Please direct any future correspondence on this matter to myself and Lara Epsley (copied).

Kind regards

Kieran Laird*Partner – Public Law & Regulation Team*

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[REDACTED]

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lauren moore <[REDACTED]>
To: Kieran Laird <kieran.laird@gowlingwlg.com>

Fri, Sep 19, 2025 at 7:11 PM

Dear Mr Laird and Ms Epsley,

Thank you for your letter of 19 September 2025.

I note your confirmation in that letter (at paragraph 5.22) that *"the answer is no"* — the current RQF was not designed or structured for SEND/neurodiverse learners aged 14–16 with EHCPs. That binary answer is the central point I have sought since my first approach on 19 August 2025, and I will be relying upon it.

For the record, this position was only admitted after a full month of correspondence in which Ofqual avoided the question:

- **19 Aug 2025** — Public Enquiries directed me to the Recognition Gateway, confirming no SEND-specific pathway.
- **20 Aug 2025** — I asked in writing whether the RQF was designed/structured for EHCP learners, setting out why reasonable adjustments cannot substitute statutory EHCP duties.
- **22 Aug 2025** — I repeated the binary question. Ofqual deferred to "a meeting next week."
- **28 Aug 2025** — Ofqual replied that *"we have not set any specific rules... which apply only to qualifications for learners with SEND"* and *"Ofqual is not responsible for compliance with the Children and Families Act 2014."* This confirmed neutrality, not design, but avoided saying "No."
- **2 Sept 2025** — Ofqual wrote *"we do not think there is any information we can now usefully add."* Still no binary answer.
- **10 Sept 2025** — I provided an Evidence Bundle showing why the only possible answer was "No."
- **12 Sept 2025** — I issued a Pre-Action Protocol Letter Before Claim.
- **19 Sept 2025** — your legal reply finally confirmed in terms: *"The answer is no."*

That matters, because it establishes in writing that since **October 2015**, when Ofqual replaced the QCF with the RQF, the framework in England has never been designed or structured for SEND/EHCP learners. Neutrality ("nothing prevents") has never been compliance. This represents a continuous statutory gap for the last decade.

For avoidance of doubt: I am not asking Ofqual to amend the RQF or create a SEN regulator. Your letter makes clear that establishing a parallel SEN framework/regulator would require legislation and is outside Ofqual's remit. I accept that.

I will therefore now be using Ofqual's admission — that the RQF was not designed or structured for SEND/EHCP learners — in my submissions to the Department for Education, the Secretary of State, and Parliament, in support of formal recognition of the **LUNA SEN Regulator** and its **Specialist RQF (SRQF)** as the only lawful solution to this long-standing gap.

Please treat this exchange as the conclusion of pre-action correspondence.

Kind regards,
Lauren Moore

[Quoted text hidden]

Kieran Laird <kieran.laird@gowlingwlq.com>
To: lauren moore <[REDACTED]>
Cc: Lara Epsley <lara.epsley@gowlingwlq.com>

Fri, Sep 19, 2025 at 7:31 PM

Dear Ms Moore

Many thanks for your email, the contents of which are noted.

Kind regards

Kieran

Kieran Laird | Partner | Public Law & Regulation Team | Gowling WLG (UK) LLP | +44 (0)7921 881344

From: lauren moore <[REDACTED]>
Sent: Friday 19 September 2025 19:12
To: Kieran Laird <Kieran.Laird@uk.gowlingwlg.com>
Subject: Re: Ofqual - response to letter before claim [GOWLG-LEGAL01.594878.2035243.FID4583718]

This message originated from outside your organisation. [REDACTED]

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lauren moore <[REDACTED]>
To: Justin Madders <justin.madders.mp@parliament.uk>

Fri, Sep 19, 2025 at 7:53 PM

Dear Justin,

Further to Ofqual's legal response of **19 September 2025** (attached), I require your immediate action.

Position now established (by Ofqual's own correspondence):

- The **RQF** (and previously the **QCF**) was **never designed or structured** for **SEN/neurodiverse learners with EHCPs**.
- Ofqual relies solely on "**reasonable adjustments**" to mainstream qualifications.
- There is **no SEN-specific pathway** and **no requirement** for SEND expertise in recognition criteria.
- This confirms a **systemic, historic gap** (pre-2015 QCF and post-2015 RQF).

Legal consequences (continuing breaches):

- **Equality Act 2010:** ss.19, 149 (indirect discrimination; PSED).
- **Children & Families Act 2014:** Part 3 (EHCP provision).
- **HRA 1998:** P1 Art.2 & Art.14.
- **UNCRPD Art.24:** equal access to vocational training.

Remedy (already built):

I am the **founder and creator** of the **LUNA SEN Regulator**, establishing a **Specialist RQF (SRQF)** and the **LUNA Learning Record (LLR)** for 14–16 SEN/EHCP learners, UK-wide. It is AI-managed (no public staffing/conflict) with independent EQA visits.

What I need you to do now:

1. **Write to Gillian Keegan (Secretary of State for Education)**
 - Seek **formal recognition** of the **LUNA SEN Regulator** and **SRQF** as the lawful remedy to the acknowledged gap.
 - Confirm **UK-wide scope** (England, Wales, Scotland, NI) given equality and UNCRPD duties.
2. **Write to Bridget Phillipson (Shadow Secretary of State for Education)**
 - Request **opposition scrutiny** and support to ensure the government cannot delay or deflect.
3. **Write back to Ofqual's legal team (copy me)**

- Record that Ofqual has **never** provided an SEN-structured framework and has relied only on adjustments.
- Ask for a **clear written confirmation** of (a) no SEN pathway; (b) no EHCP-embedded design; (c) reliance on reasonable adjustments.

4. Support with Cabinet Office (Naming & Approvals Committee)

- Back my appeal for luna-regulator.gov.uk (or luna-senregulator.gov.uk) as essential for public confidence and equal access.

Attachments for your letters:

- Ofqual legal response (19 Sept 2025).
- Annex A – Briefing Note (SRQF/LLR and statutory gap).

Given the prolonged delays and my health, I need your confirmation today that you will send these letters and copy me on the correspondence.

Kind regards,

Lauren Moore

Founder & Creator – LUNA SEN Regulator

[Quoted text hidden]

2 attachments



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